tor General Sauer, Acting Assistant Attorney General Galeotti, Frederick Liu, Tyler Anne Lee, and *Andrew C. Noll.*†

JUSTICE BARRETT delivered the opinion of the Court.

A prison sentence, once imposed, usually cannot be modified by the district court. 18 U. S. C. § 3582(b). But Congress has established several narrow exceptions to this rule. One exception—commonly referred to as "compassionate release"—permits the court to reduce a term of imprisonment if it finds, among other things, that "extraordinary and compelling reasons warrant such a reduction." § 3582(c)(1)(A)(i). We consider whether the sentencing disparity created by Congress's nonretroactive change to § 924(c)'s mandatory penalties can serve as an "extraordinary and compelling reaso[n]" that "warrant[s]" a reduction. § 3582(c)(1)(A)(i). We hold that it cannot.

Page Proof Pending Publication

†Briefs of *amici curiae* urging reversal in both cases were filed for Clinical Law Professors by *Erica Zunkel* and *David H. Korn*; for the Constitutional Accountability Center by *Elizabeth B. Wydra* and *Brianne J. Gorod*; for FAMM et al. by *Jarrod L. Schaeffer* and *Joshua L. Dratel*; for Former Corrections Officials by *Scott P. Lewis*; for the NAACP et al. by *Raymond P. Tolentino, Carlton Forbes, Kristen Johnson,* and *Christopher Kemmitt*; for the National Association of Federal Defenders by *Shelley Fite, Tracy Dreispul, Daniel Habib, Jennifer Niles Coffin,* and *Marisa Taney*; for the New York Council of Defense Lawyers (NYCDL) by *Harry Sandick* and *Celeste L. M. Koeleveld*; for Douglas Berman by *Vincent Levy*; and for Sen. Cory Booker et al. by *Amy Mason Saharia.*

Andrew T. Tutt, Dana Kagan McGinley, and *Nicole L. Masiello* filed a brief for Former Federal Judges as *amici curiae* urging reversal in No. 24–820.

Amelia T. R. Starr filed a brief for The Fortune Society as *amicus curiae* urging reversal in No. 24–860.

Briefs of *amici curiae* were filed in both cases for the Cato Institute et al. by *Matthew P. Cavedon, Brett Tolman,* and *John W. Whitehead*; and for Former Commissioners of the United States Sentencing Commission by *Joshua Matz* and *Trisha Anderson.*

I

A

Daniel Rutherford, petitioner in one of these consolidated cases, committed two separate robberies at gunpoint in 2003. A jury convicted him of several crimes, including two counts of using and carrying a firearm during a crime of violence, in violation of § 924(c). At the time, a defendant convicted of two § 924(c) counts was subject to a mandatory 25-year sentence of imprisonment for the second offense that would be "stacked" upon—that is, run consecutively to—the first offense's mandatory penalty (which, for Rutherford, was 7 years). See *Deal* v. *United States*, 508 U. S. 129, 132–137 (1993). Rutherford's two § 924(c) counts thus earned him a 32-year minimum sentence, resulting in a total sentence of over 42 years of imprisonment.

Johnnie Carter, petitioner in the other case, received an even longer mandatory minimum under § 924(c). In 2007, Carter participated in a string of armed bank robberies. Among other offenses, he was convicted of three § 924(c) counts. Carter was sentenced to 70 years of imprisonment—57 of which came from his stacked § 924(c) convictions.

Page Proof Pending Publication

Years after Rutherford and Carter were each sentenced, Congress passed the First Step Act of 2018, 132 Stat. 5194, "a landmark piece of legislation that changed the federal criminal-sentencing system in numerous respects," *Hewitt* v. *United States*, 606 U. S. 419, 424 (2025). Among the changes was the elimination of § 924(c)'s 25-year stacking requirement for first-time offenders: A 25-year consecutive sentence is now required only for a "'violation . . . that occurs after a prior conviction under this subsection has become final.'" § 403(a), 132 Stat. 5222. This change would have made a significant difference for both Rutherford and Carter. Had either been sentenced today, his mandatory minimum under

§ 924(c) would have been much shorter: 14 years for Rutherford and 21 years for Carter.

Obviously, Rutherford and Carter—not to mention the many other similarly situated prisoners—would like the benefit of the Act's amendment to § 924(c). As a rule, however, changes to sentencing statutes apply only to offenses committed after the statute's effective date. See *Hewitt*, 606 U. S., at 424. The Act departs from this rule in a very limited respect: Its more lenient penalties apply to offenses committed before the statute's enactment "if a sentence for the offense has not been imposed as of such date of enactment." § 403(b), 132 Stat. 5222. But for defendants sentenced before the Act, the general rule of nonretroactivity remains in place. See *Hewitt*, 606 U. S., at 427.

Rutherford and Carter acknowledge that they do not qualify for the reduced penalties. Nonetheless, each has invoked the Act as a ground for compassionate release under § 3582(c)(1)(A)(i).

Page Proof Pending Publication

B

At this point, some background on the compassionate release provision is helpful. This provision, which was part of the Sentencing Reform Act of 1984, allows a district court to reduce a prison term "after considering the factors set forth in section 3553(a) to the extent that they are applicable" if the court finds that "extraordinary and compelling reasons warrant such a reduction" and that "such a reduction is consistent with applicable policy statements issued by the Sentencing Commission." 18 U. S. C. § 3582(c)(1)(A). Congress did not specify what "extraordinary and compelling" reasons might warrant compassionate release. It did, however, authorize the Commission to promulgate policy statements that "describe what should be considered extraordinary and compelling reasons for sentence reduction, including the criteria to be applied and a list of specific examples." 28 U. S. C. § 994(t). The Commission first issued an applicable policy statement in 2006 and amended it the following year to iden-

tify several "'extraordinary and compelling'" reasons for compassionate release: "'terminal illness'"; "'permanent physical or medical condition'"; "'deteriorating physical or mental health because of the aging process'"; "'death or incapacitation of the defendant's only family member capable of caring for the defendant's minor child or minor children'"; and a catchall category for "'other'" reasons not specifically enumerated, "'[a]s determined by the Director of the Bureau of Prisons.'" United States Sentencing Commission, Guidelines Manual Supp. to App. C, Amdt. 698 (Nov. 2011) (USSG). In 2016, the Commission streamlined the statement to recognize four categories of reasons: "'Medical Condition of the Defendant,'" "'Age of the Defendant,'" "'Family Circumstances,'" and "'Other Reasons.'" *Id.*, Amdt. 799.

When Congress passed the First Step Act in 2018, it amended the compassionate release provision. While it left the "extraordinary and compelling" standard untouched, it opened a new procedural route for seeking a reduction. Originally, only the Bureau of Prisons could ask a district court to reduce a prisoner's sentence. The Act gives the prisoner greater agency: He may request that the Bureau file a motion on his behalf, and, if it declines or fails to do so within 30 days, he may file a motion himself. 18 U. S. C. §3582(c)(1)(A). The Act also obligates the Bureau to take certain steps when a prisoner is diagnosed with a terminal illness or is mentally or physically unable to file his own motion. §§3582(d)(2)(A)–(B). For example, the Bureau must inform "the defendant's attorney, partner, and family members" about the defendant's condition and that they can file a sentence-reduction request on his behalf. *Ibid.*

The Commission lost a quorum shortly after the Act went into effect and did not update its policy statement to address these changes. Most Circuits held that the existing statement—which mentioned only motions filed by the Bureau—did not apply to motions filed by prisoners. See *United States* v. *Andrews*, 12 F. 4th 255, 259 (CA3 2021) (collecting

Page Proof Pending Publication

cases); but see *United States* v. *Bryant*, 996 F. 3d 1243, 1247–1248 (CA11 2021) (applying the policy statement). So for this new class of motions, most courts interpreted the statute without input from the Commission.

They were soon forced into uncharted territory. Relevant here, courts faced a surge of motions from prisoners who invoked the Act's nonretroactive sentencing amendments as grounds for compassionate release. Most Courts of Appeals held that a nonretroactive amendment to a mandatory minimum cannot serve as an "extraordinary and compelling" reason for a reduced sentence.[1] A minority, however, concluded that the disparity produced by such an amendment can justify a reduced sentence—at least when considered in combination with other factors.[2]

The Commission eventually regained a quorum, entered the fray, and sided with the minority. In 2023, it amended its policy statement to add a new category to the list of "extraordinary and compelling" reasons: "Unusually Long Sentence."[3] See USSG App. C, Amdt. 814. Under this category:

Page Proof Pending Publication

> "'If a defendant received an unusually long sentence and has served at least 10 years of the term of imprisonment, a change in the law (other than an amendment to the Guidelines Manual that has not been made retroactive)

---

[1] See *Andrews*, 12 F. 4th, at 260–262; *United States* v. *McMaryion*, 2023 WL 4118015, *2 (CA5, June 22, 2023); *United States* v. *Jarvis*, 999 F. 3d 442, 443–444 (CA6 2021); *United States* v. *Thacker*, 4 F. 4th 569, 573–575 (CA7 2021); *United States* v. *Crandall*, 25 F. 4th 582, 583 (CA8 2022); *United States* v. *Jenkins*, 50 F. 4th 1185, 1197–1200 (CADC 2022).

[2] See *United States* v. *Ruvalcaba*, 26 F. 4th 14, 24–28 (CA1 2022); *United States* v. *McCoy*, 981 F. 3d 271, 284–288 (CA4 2020); *United States* v. *Chen*, 48 F. 4th 1092, 1094–1101 (CA9 2022); *United States* v. *McGee*, 992 F. 3d 1035, 1045–1048 (CA10 2021).

[3] In addition, the Commission added the fact that a prisoner was a victim of abuse while in custody as an "extraordinary and compelling" reason. See USSG App. C, Amdt. 814 (Nov. 2023). This change is not at issue in today's cases.

> may be considered in determining whether the defendant presents an extraordinary and compelling reason, but only where such change would produce a gross disparity between the sentence being served and the sentence likely to be imposed at the time the motion is filed, and after full consideration of the defendant's individualized circumstances.'" *Ibid.*

Three Commissioners voted against the amendment and accused the Commission of making "a seismic structural change to our criminal justice system without congressional authorization or directive." United States Sentencing Commission, Public Meeting Tr. 60 (Apr. 5, 2023).

C

Back to the cases at hand. After the First Step Act became effective, Rutherford moved for compassionate release. He argued that "extraordinary and compelling" reasons warrant a reduction because he had received an "unusually long sentence under a statutory provision that Congress has since found too punitive but has not made retroactively applicable." 2 App. in No. 23–1904 (CA3), p. 58. In addition, he noted that he suffered from obesity and hypertension, which rendered him more vulnerable to the COVID–19 virus.

Page Proof Pending Publication

While Rutherford's motion was pending, the Third Circuit held that the nonretroactive change to § 924(c) cannot serve as an "extraordinary and compelling" reason for compassionate release. See *Andrews*, 12 F. 4th, at 260–262. The District Court then denied Rutherford's motion, and Rutherford appealed that ruling to the Third Circuit. While his appeal was pending, the Commission amended its policy statement, and Rutherford asked the Court of Appeals to consider the effect of this statement in the first instance.

The Third Circuit affirmed the District Court's denial of Rutherford's motion. See 120 F. 4th 360, 363 (2024). The court acknowledged that Congress had authorized the Commission to issue a policy statement fleshing out the meaning

of "'extraordinary and compelling'" reasons under § 3582(c)(1)(A)(i). *Id.*, at 375. But that statement, the court said, cannot "go beyond what Congress intended." *Id.*, at 376. And as the Third Circuit had already explained in *Andrews*, it makes no sense to "'construe Congress's nonretroactivity directive as simultaneously creating an extraordinary and compelling reason for early release.'" 120 F. 4th, at 376 (quoting *Andrews*, 12 F. 4th, at 261). Because the Commission's amended policy statement "conflicts with the will of Congress," the court held, it "cannot be considered in determining a prisoner's eligibility for compassionate release." 120 F. 4th, at 376.

Carter's case is similar. After the Commission amended its policy statement, he moved for a reduction under § 3582(c)(1)(A)(i), arguing that his sentence is "unusually long" and that the Act created a "'gross disparity'" between his original sentence and the one he would receive under the amended § 924(c). 2 App. in No. 24–1115 (CA3), pp. 206–207. He also pointed to his strong family ties, rehabilitation, and good conduct while incarcerated as additional reasons for a reduction. Bound by *Andrews*, the District Court denied Carter's motion, and Carter appealed. While the appeal was pending, the Third Circuit decided Rutherford's case. Shortly thereafter, it summarily affirmed the denial of Carter's motion. See 2024 WL 5339852, *1 (Dec. 2, 2024).

Page Proof Pending Publication

The Circuits remain divided over whether the disparity created by a nonretroactive change to sentencing law, like the Act, can constitute an "extraordinary and compelling reaso[n]" that "warrant[s]" compassionate release.[4] 18 U. S. C.

[4] Most Courts of Appeals that previously answered this question in the negative have determined that they are not bound by the Sentencing Commission's contrary amendment to its policy statement. See 120 F. 4th 360, 378–380 (CA3 2024) (case below); *United States* v. *Austin*, 125 F. 4th 688, 692 (CA5 2025); *United States* v. *Bricker*, 135 F. 4th 427, 435 (CA6 2025); *United States* v. *Black*, 131 F. 4th 542, 545–546 (CA7 2025); *United States* v. *Johnson*, 2025 WL 1949738, *2 (CA8, July 16, 2025). But see *United*

§3582(c)(1)(A)(i). We granted certiorari in these consolidated cases to resolve the split. 605 U. S. 1001 (2025).

II

Petitioners argue that the Third Circuit's decisions depart from the plain text of §3582(c)(1)(A)(i) and ignore binding guidance from the Sentencing Commission. We disagree. When Congress declines to make a sentencing amendment retroactive, the fact that a preamendment sentence is longer than it would have been postamendment is not an "extraordinary and compelling reaso[n]" that "warrant[s]" a sentence reduction. 18 U. S. C. §3582(c)(1)(A)(i). Insofar as the Commission's amended policy statement maintains otherwise, it conflicts with the statute.

A

Page Proof Pending Publication

The compassionate release provision empowers a district court to "reduce the term of imprisonment" if it finds, among other things, that "extraordinary and compelling reasons warrant such a reduction." *Ibid.* The term "extraordinary" means "most unusual," "far from common," or "having little or no precedent." Webster's Third New International Dictionary 807 (1976); see 5 Oxford English Dictionary 614 (2d ed. 1989) ("[o]ut of the usual or regular course or order"). "Compelling," meanwhile, means "tending to convince or convert by or as if by forcefulness of evidence." Webster's Third New International Dictionary, at 463; see 3 Oxford English Dictionary, at 600 ("irresistible; demanding attention, respect"). Putting these definitions together, "extraordinary and compelling" reasons for compassionate release are those that are especially unusual and convincing.

The disparity created by Congress's amendment to §924(c) does not satisfy this definition. Far from "extraordinary,"

States v. *Wilson*, 77 F. 4th 837, 841–842 (CADC 2023) (reserving this question because the amendment had not yet gone into effect).

nonretroactive amendments to criminal penalties are the norm. "Ordinarily," we have explained, "statutory changes to federal penalties only benefit *future* offenders." *Hewitt*, 606 U. S., at 424; see 1 U. S. C. § 109. Congress sometimes deviates from the default, as it did in the Act, by extending the revised penalties to defendants not yet sentenced. Even then, some measure of prospectivity is par for the course: The "ordinary practice" is to "withhol[d] that change from defendants already sentenced." *Dorsey* v. *United States*, 567 U. S. 260, 280 (2012). And regardless of whether the line is drawn at the offense or the sentence, a nonretroactive penalty change necessarily creates a disparity between those who receive the benefit and those who do not. See *ibid.* ("[D]isparities . . . reflec[t] a line-drawing effort" and "will exist whenever Congress enacts a new law changing sentences"). Such a disparity is an unexceptional feature of a system in which nonretroactivity is the default.

As for "compelling": It is hard to see how Congress's deliberate decision *not* to extend newly reduced penalties to those already sentenced could be a convincing reason that "warrant[s]" a reduction. 18 U. S. C. § 3582(c)(1)(A)(i). As we have explained, Congress decided to apply the lower prison sentences to some violators of § 924(c)—those for whom a sentence had not yet been imposed—but not others. § 403(b), 132 Stat. 5222. In doing so, Congress "reinforced its interest in finality and avoided burdening district courts with additional litigation." *Hewitt*, 606 U. S., at 437–438 (plurality opinion). Treating the disparity resulting from § 924(c)'s amendment as a compelling reason for reducing a sentence would undermine Congress's choice to leave the sentence intact.

It would also fall well outside the heartland of compassionate release, which has long been defined by a prisoner's personal circumstances. After Congress enacted § 3582(c)(1)(A)(i), the Bureau of Prisons explained that the standards for compassionate release mirrored those of a prior sentence-

Page Proof Pending Publication

reduction statute and that "[r]eleases have been most often applied in cases where the inmate is terminally ill." 59 Fed. Reg. 1238 (1994); see 28 CFR § 572.40(a) (1984) (providing that the Bureau would move for a sentence reduction under 18 U. S. C. § 4205(g) (1982 ed.) "in particularly meritorious or unusual circumstances," such as "if there is an extraordinary change in an inmate's personal or family situation or if an inmate becomes severely ill"). The Act's heightened procedural requirements are similarly tied to personal circumstances: The Bureau must provide extra assistance to a movant diagnosed with a terminal illness or who is physically or mentally unable to submit a request on his own. § 3582(d)(2) (2018 ed.). And from 2007 until 2023, the Sentencing Commission highlighted essentially three grounds for compassionate release: (1) medical condition, (2) age, and (3) family circumstances.[5] See USSG § 1B1.13, comment., n. 1 (Nov. 2021).

We need not decide whether there are reasons beyond personal circumstances that could qualify as "extraordinary and compelling." Until very recently, no one thought that nonretroactive sentencing amendments were among them.[6] They are not.

Page Proof Pending Publication

[5] The Commission also recognized that "[o]ther [r]easons" could qualify, "[a]s determined by the Director of the Bureau of Prisons." USSG § 1B1.13, comment., n. 1. The Bureau is responsible for the housing and care of prisoners, 18 U. S. C. § 4042(a), so it is well positioned to identify "other reasons" based on a prisoner's personal circumstances. By contrast, it plays no role in the sentencing process and lacks expertise in that area. See *Fernandez* v. *United States*, 608 U. S. 411, 425 (2026).

[6] Petitioners argue otherwise, but the cases they cite do not involve nonretroactive sentencing amendments. See *United States* v. *Diaco*, 457 F. Supp. 371, 372 (NJ 1978) (reducing a prisoner's sentence under 18 U. S. C. § 4205(g) (1982 ed.) after his codefendants received significantly lower sentences); *Setser* v. *United States*, 566 U. S. 231, 242–243 (2012) (suggesting that a district court could use § 3582(c)(1)(A) (2018 ed.) to address the unfairness resulting from state-court developments that produce an unusually long sentence). We need not decide whether compassionate release is available for these kinds of postjudgment developments.

B

Petitioners, echoed by the dissent, insist that our reading artificially limits the text. The terms "extraordinary and compelling," they say, are "'comprehensive and flexible,'" requiring a "'case-by-case' inquiry into the 'totality of the circumstances.'" Brief for Petitioner Rutherford 15, 17; see Brief for Petitioner Carter 41. And under this "'flexible, all-things-considered approach,'" a judge may consider the disparity resulting from Congress's amendment to § 924(c). Brief for Petitioner Rutherford 17; see *post*, at 480 (opinion of SOTOMAYOR, J.).

While the terms "extraordinary" and "compelling" leave room for judgment, they are not so flexible as to encompass any consideration. Their meaning depends on context: A reason is "extraordinary" and "compelling" only if it is sufficiently unusual and convincing to "warrant" compassionate release. 18 U. S. C. § 3582(c)(1)(A)(i); see *Fernandez* v. *United States*, 608 U. S. 411, 423–424, and n. 4 (2026). As we have explained, the disparity resulting from Congress's amendment to § 924(c) tracks ordinary sentencing practice and reflects Congress's deliberate choice to extend relief to some prisoners and not others. Thus, the disparity is neither an "extraordinary" nor a "compelling" reason that warrants a reduction in sentence.

Page Proof Pending Publication

Both petitioners and the dissent note that when Congress empowered the Sentencing Commission to describe the grounds for compassionate release, it included only one express limitation: "Rehabilitation of the defendant alone shall not be considered an extraordinary and compelling reason." 28 U. S. C. § 994(t). By ruling out just one reason, they argue, Congress impliedly authorized the district court to consider all other relevant information. *Post*, at 483–484.

This argument fares no better. We have repeatedly emphasized that "'[t]he force of any negative implication . . . depends on context.'" *NLRB* v. *SW General, Inc.*, 580 U. S. 288, 302 (2017) (quoting *Marx* v. *General Revenue Corp.*, 568

U. S. 371, 381 (2013)); see also A. Scalia & B. Garner, Reading Law: The Interpretation of Legal Texts 107–111 (2012). A speaker's choice to rule out one item does not always mean that the rest of the universe is on the table. Imagine that a dietitian cautions her patient, "Pasta alone is not an acceptable dinner." Though the patient might fervently wish otherwise, this advice does not license any meal besides standalone pasta. (Fried chicken with a side of funnel cakes? A bowl of Lucky Charms?) Instead, the dietitian surely had some reason—like the patient's past eating habits—to caution against this specific choice.

So too with § 994(t). By addressing rehabilitation, Congress did not impliedly bless all other considerations. Instead, it had a particular reason—namely, past sentencing practice—to single out this factor. Before the Sentencing Reform Act, "[b]oth indeterminate sentencing and parole were based on concepts of the offender's possible, indeed probable, rehabilitation, a view that it was realistic to attempt to rehabilitate the inmate and thereby to minimize the risk that he would resume criminal activity upon his return to society." *Mistretta* v. *United States*, 488 U. S. 361, 363 (1989). Guided by this aim, the judge and parole officer each made decisions based on "their own assessments of the offender's amenability to rehabilitation." *Ibid.* When the Sentencing Reform Act eliminated parole and instituted a new sentencing regime, it "reject[ed] imprisonment as a means of promoting rehabilitation." *Id.*, at 367; see 18 U. S. C. § 3582(a) ("[I]mprisonment is not an appropriate means of promoting correction and rehabilitation"). Ruling out "rehabilitation alone" as a basis for compassionate release therefore underscores the break from the old system. It suggests nothing about what other reasons might qualify as "extraordinary and compelling."

Page Proof Pending Publication

And in petitioners' telling, the list is long. They emphasize that when imposing or modifying a sentence, a district court ordinarily enjoys "broad discretion to consider all rele-

vant information" unless prohibited by the Constitution or by Congress. *Concepcion* v. *United States*, 597 U. S. 481, 491 (2022); see 18 U. S. C. §3661 ("No limitation shall be placed on the information concerning the background, character, and conduct of a person . . . which a court . . . may receive and consider for the purpose of imposing an appropriate sentence"). Section 3582(c)(1)(A) expressly recognizes that discretion, they argue, by providing that a court may grant relief "after considering the factors set forth in section 3553(a) to the extent that they are applicable." Those factors include "the kinds of sentences available," "the kinds of sentence and the sentencing range established for . . . the applicable category of offense," and "the need to avoid unwarranted sentence disparities." §§3553(a)(3)–(4), (6). A factor like the disparity caused by a nonretroactive sentencing amendment, petitioners contend, fits right in. See also *post*, at 482–483, 488–489.

Page Proof Pending Publication

Petitioners skip a step. Before determining the extent of a reduction based on the §3553(a) factors, a court must first ensure that a movant is part of the "limited class of prisoners" who are "eligibl[e]" for such a reduction. *Dillon* v. *United States*, 560 U. S. 817, 825, 827 (2010). And whether a prisoner is eligible depends on whether he can offer "extraordinary and compelling" reasons that "warrant" compassionate release, not on the §3553(a) factors. §3582(c)(1)(A)(i); see *id.*, at 827. This gatekeeping requirement is not, as petitioners seem to believe, a free-for-all. It is a distinct analytical step that imposes independent and ascertainable limits on access to compassionate release.

Concepcion v. *United States*, 597 U. S. 481, is not to the contrary. *Concepcion* involved sentence-modification proceedings under a different provision of the Act. See *id.*, at 486–487. All agreed that the defendant was eligible for a reduction under that provision; the only question was what type of information the District Court could consider in mod-

ifying his sentence. See *id.*, at 488 (explaining that "[t]he Government conceded [the defendant's] eligibility for relief"). Because that provision lacks any limiting language, we concluded that a court could consider changes to the Guidelines, as well as intervening facts, when calculating a new sentence under it. *Id.*, at 500. Today's cases differ from *Concepcion* because they concern whether a prisoner is eligible for compassionate release in the first place. And on that score, Congress has "expressly cabined district courts' discretion," *id.*, at 495, by prohibiting a reduction in sentence unless a court finds that "extraordinary and compelling" reasons warrant it.

Finally, petitioners downplay the conflict between the Act and their interpretation of § 3582(c)(1)(A)(i). True, Congress chose not to reduce § 924(c) penalties on a *categorical* basis for already sentenced defendants. But petitioners' approach is not categorical: The disparity between a pre- and post-Act sentence would serve as just one of at least two considerations that, taken together, warrant compassionate release. And reducing a sentence based on an all-things-considered judgment, petitioners argue, does not contradict Congress's decision to leave a class of offenders ineligible for a sentencing reduction. See also *post*, at 487–488.

Page Proof Pending Publication

The implications of this argument are sweeping. Indeed, its logic extends well beyond nonretroactive sentencing amendments to disagreement with the length of any punishment on the books. Take a judge who believes that a mandatory minimum is unduly harsh. Could she treat the severity of the sentence as an "extraordinary and compelling reason" for compassionate release? Petitioners refused to rule out this possibility at oral argument. Tr. of Oral Arg. 11–15, 44–49. Yet "[i]t is the legislature, not the Court, which is to define a crime, and ordain its punishment." *United States* v. *Wiltberger*, 5 Wheat. 76, 95 (1820). Treating the severity of a mandatory penalty as a reason for com-

passionate release rejects Congress's judgment that the punishment fits the crime.[7] And petitioners' proposal—injecting other factors into the mix of extraordinary and compelling reasons—does not solve the problem. The Sixth Circuit put it well: "[A]dding a legally impermissible ground to three insufficient factual considerations does not entitle a defendant to a sentence reduction." *United States* v. *Jarvis*, 999 F. 3d 442, 444 (2021).

C

This brings us to the Sentencing Commission. Recall that Congress authorized the Commission to promulgate policy statements that "describe what should be considered extraordinary and compelling reasons for sentence reduction," 28 U. S. C. § 994(t), and provided that any grant of compassionate release must be consistent with the Commission's policy statements, 18 U. S. C. § 3582(c)(1)(A). Recall, too, that the Commission's current policy statement allows consideration of nonretroactive legal changes in certain circumstances. Petitioners contend that our interpretation of the statute must yield to the policy statement.

Page Proof Pending Publication

Petitioners misunderstand the Commission's role. Congress has empowered the Commission to "give meaning" to the compassionate release provision by identifying the circumstances that constitute "extraordinary and compelling" reasons for release. *Loper Bright Enterprises* v. *Raimondo*, 603 U. S. 369, 394 (2024). Even so, the Commission's

[7] The dissent tries to escape this dilemma by arguing that the severity of a mandatory minimum is not a "relevant consideration" under § 3553(a). *Post*, at 490. But the dissent is conspicuously silent about why, on its logic, a district court could not credit this fact as an "extraordinary and compelling" reason why a prisoner is eligible for a reduction. If there is no restriction on the "kind[s]" of reasons that qualify, *post*, at 480, then the severity of a mandatory penalty should be fair game too. And whether district courts will ever "routinely" rely on this consideration is beside the point. *Post*, at 491. A district court is never free—even in an individual case—to reject a punishment that Congress has required.

policy statements must be "consistent with" the governing statute, 28 U. S. C. § 994(a), and courts have a duty to "independently interpret the statute and effectuate the will of Congress," 603 U. S., at 395. We are not bound to follow the Commission's guidance when it "exceed[s its] statutory authority" by adopting a definition of a term that is inconsistent with the statute. *Batterton* v. *Francis*, 432 U. S. 416, 426 (1977). Put differently, the Commission's interpretation must land within the statutory goalposts, no matter how wide they might be. Cf. *Koons* v. *United States*, 584 U. S. 700, 707 (2018) ("[P]olicy statements cannot make a defendant eligible when [the statute] makes him ineligible").

We need not nail down the precise boundaries of the phrase "extraordinary and compelling" to conclude that "with regard to the particular dispute in [this] case," the statute's language "has a plain and unambiguous meaning." *Robinson* v. *Shell Oil Co.*, 519 U. S. 337, 340 (1997). The statutory text and structure make clear that Congress's nonretroactive change to § 924(c)—considered by itself or in combination with other factors—cannot make a prisoner eligible for compassionate release. To the extent that it counsels otherwise, the Commission's policy statement is invalid.

Page Proof Pending Publication

* * *

Compassionate release is available only when a court finds that "extraordinary and compelling reasons warrant" a sentence reduction. 18 U. S. C. § 3582(c)(1)(A)(i). The disparity that results from Congress's decision to leave a sentence untouched cannot serve as one of those reasons. The judgments of the Third Circuit are affirmed.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN and JUSTICE JACKSON join, dissenting.

Congress directed the United States Sentencing Commission, not this Court, to define what constitutes "extraordi-